

11	Giunta vs. Integrity Global Security 2022-01244675	1. Motion to Compel Answers to Form Interrogatories 2. Motion to Compel Answers to Special Interrogatories 3. Motion to Compel Production filed by Reginald Giunta on 8/25/23 Plaintiff, Reginald Giunta’s Motions to Compel Answers to the First Set of Form Interrogatories – General (ROA 54), Special Interrogatories (ROA 50), and Requests for Production of Documents (ROA 46) from Defendant, Integrity Global Security, are GRANTED. If a party to whom interrogatories or requests for production of documents were directed fails to serve a timely response, the propounding party may move for an order compelling responses, and for monetary sanctions. Code Civ. Proc. §§ 2030.290(b); 2031.300(b). By operation of law, if a party fails to serve a timely response to interrogatories, all objections that could have been asserted are waived, including any right to exercise the option to produce writings under Section 2030.230, as well as one based on privilege or on the protection for work product. Code Civ. Proc. § 2030.290(a); <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i>, 148 Cal. App. 4th 390, 408 (2007); <i>Leach v. Superior Court</i>, 111 Cal. App. 3d 902, 906 (1980). Similarly, if a party fails to serve a timely response to requests for production, all objections are waived. Code Civ. Proc. § 2031.300(a). “[T]he court shall impose a monetary sanction . . . against any party, person, or attorney who
-----------	--	--

unsuccessfully makes or opposes a motion to compel a response to interrogatories [or a demand for inspection], unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Code Civ. Proc. §§ 2030.290(c) (interrogatories); 2031.300(c) (inspection demands).

Here, on 6/16/22, Plaintiff propounded his first set of Form Interrogatories – General, Special Interrogatories (Nos. 1-6), and Requests for Production of Documents (Nos. 1-36) on Defendant. Williams Decl., ¶ 2 (ROA 40, 42, and 44). To date, Plaintiff has received *no response* to the aforementioned discovery. *Id.* at ¶ 3.

As a result of defendant’s failure to serve responses to the requests, defendant has waived any objection to the interrogatories and requests, including one based on privilege or work product protection. Code Civ. Proc. §§ 2030.290(a) (interrogatories); 2031.300(a) (inspection demands).

Accordingly, Defendant is ordered to serve verified answers, without objections, to the aforementioned discovery within 30 calendar days of the notice of ruling.

Moreover, the Court **GRANTS** sanctions in the amount of \$560 against Defendant for each motion, for a total amount of \$1,680, to be paid within 30 calendar days of the notice of ruling.

		The Court further notes that it appears that Defendant has not been represented by counsel for over a year. A corporation must be represented by an attorney and cannot represent itself. <i>Gutierrez v. G&M Oil Co., Inc.</i>, 184 Cal. App. 4th 551, 564 (2010). “[I]t is more appropriate and just to treat a corporation’s failure to be represented by an attorney as a defect that may be corrected, and on such terms as are just in the sound discretion of the court.” <i>CLD Construction, Inc. v. City of San Ramon</i>, 120 Cal. App. 4th 1141, 1149 (2004). “[T]he court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time.” <i>Id.</i> at 1150. The Court sets an OSC re: Status of Representation of Corporate Defendant for October 27, 2023 at 9:00 a.m. Plaintiff to give notice.
12	O’Kane vs. Radovich 2022-01276312	Motion to Compel Deposition (Oral or Written) filed by Kevin O’Kane on 8/25/23 Plaintiff Kevin O’Kane will and hereby does, move to Compel the deposition of Defendant Chaslav Radovich. Plaintiff requests sanctions in an amount no less than \$6,900 from Mr. Radovich, which request is made pursuant to California Code of Civil Procedure §§ 2023.010(d) (Failing to respond to submit to an authorized method of discovery), 2023.030(a) (monetary sanction is available for discovery misconduct), and 2025.450(g)(1) (failure to comply with deposition notice).